

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Tanya R. Kennedy,
Saliann Scarpulla
Martin Shulman
Bahaati E. Pitt-Burke
Shlomo S. Hagler,

Justice Presiding,

Justices.

The People of the State of New York,
Respondent,

Motion No. 2025-07089

Ind. No. 74363/23

Case No. 2025-08334

-against-

Dariberto Fernandez-Perez,
Defendant-Appellant.

Defendant having moved to deem the moving papers herein a timely filed notice of appeal, or in the alternative, for an extension of time in which to file a notice of appeal from a judgment of the Supreme Court, Bronx County, rendered on or about January 25, 2024,

Now, upon reading and filing the papers with respect to the motion, and due deliberation having been had thereon,

It is ordered that the motion is granted to the extent of deeming the moving papers a timely filed notice of appeal.

ENTERED: March 05, 2026



Susanna Molina Rojas
Clerk of the Court